



Engineer Contract

This contract dated 15-06-2021, by and between **FMan Soft company** and Aditya Pratap Singh ("Employee"). The company and the employee may each be referred to in this contract as a "Party" and collectively as the "Parties."

0. Culture

We earn our global clients' trust & satisfaction via responsive communication, fast delivery and high quality products. And we deliver the service with the slogan "DONE BY HEART".

We are professionals coming from around the world. But we share team spirit. We "GO TOGETHER & GO BIG".

1. Services

When the employee accepts a project, he/she has to stay responsible to complete the assignment and deliver high-quality work with required deadlines. In addition, the employee shall perform such other duties and tasks, or changes to the Services, as may be agreed upon by the Parties.

2. Payment

The employee will be paid within 5 to 10 days after the end of each month.

The payment amount is based on total projects/ milestones the employee has completed successfully and approved by the company's clients within each month.

For a small project requesting an engineer under a project manager, the employee will be paid 60% off the project's net profit including bonus.

For a big project requesting a team of engineers, the employee will be paid upon his/her role in the project.

The employee will take any transfer fee that might happen.

3. Term and Termination

The employee acknowledges and agrees that the engagement with the company at will, subject to being terminated at the discretion of the company at any time.

If the employee abandons his/her assigned project before completion or stays unresponsive without prior notice for more than 3 days during a project, this contract is automatically terminated. The company will not pay any of his/her remaining payment as a punishment for irresponsibility.

At the time of termination, the employee agrees to return all the company's property used in performance of the Services, including but not limited to computers, cell phones, keys, reports and other equipment and documents. the employee shall reimburse the company for any property lost or damaged in an amount equal to the market price of such property.

Any violation within this contract will result in firing.

4. Benefits

The employee shall not be entitled to any of the company's benefits, including, but not limited to, coverage under medical, dental, retirement or other plans. The company shall not be obligated to pay worker's compensation insurance, unemployment compensation, social security tax, withholding tax or other taxes or withholdings for or on behalf of the employee in connection with the performance of the Services under this contract. Nothing contained in this contract shall be deemed or construed by the Parties to create the relationship of a partnership, a joint venture.

5. NDA

a. Confidential and Proprietary Information. In the course of performing the Services, the employee will be exposed to confidential and proprietary information of the company. "Confidential Information" shall mean any data or information that is competitively sensitive material and not generally known to the public, including, but not limited to, information relating to development and plans, marketing strategies, finance, operations, systems, proprietary concepts, documentation, reports, data, specifications, computer software, source code, object code, flow charts, data, databases, inventions, know-how, trade secrets, customer lists, customer relationships, customer profiles, supplier lists, supplier relationships, supplier profiles, pricing, sales estimates, business plans and internal performance results relating to the past, present or future business activities, technical information, designs, processes, procedures, formulas or improvements, which the company considers confidential and proprietary. The employee acknowledges and agrees that the Confidential Information is valuable property of the company, developed over a long period of time at substantial expense and that it is worthy of protection.

The employee is forbidden to use "Confidential Information" for his/her personal or commercial usage.

The employee is forbidden to establish any private agreements with the company's clients.

b. Confidentiality Obligations.

Except as otherwise expressly permitted in this contract, The employee shall not disclose or use in any manner, directly or indirectly, any Confidential Information either during the term of this contract or at any time thereafter, except as required to perform the Services or with the company's prior written consent.

The employee has to delete all materials given by the company including, but not limited to, source code, databases upon the company's request.

c. Irreparable Harm. The employee acknowledges that use or disclosure of any Confidential Information in a manner inconsistent with this contract will give rise to irreparable injury for which damages would not be an adequate remedy. Accordingly, in addition to any other legal remedies which may be available at law or in equity, the company shall be entitled to equitable or injunctive relief against the unauthorized use or disclosure of Confidential Information. The company shall be entitled to pursue any other legally permissible remedy available as a result of such breach, including but not limited to, damages, both direct and consequential. In any action brought by the company under this Section, the company shall be entitled to recover its attorney's fees and costs from the employee.

7. Ownership of Work Product. The Parties agree that all work product, information or other materials created and developed by the employee in connection with the performance of the Services under this contract and any resulting intellectual property rights (collectively, the "Work Product") are the sole and exclusive property of the company or the company's clients.

8. Non-Solicit

The employee agrees to not, directly or indirectly, solicit any officer, director or employee, or any customer, client, supplier or vendor of Client for the purpose of inducing such party to terminate its relationship with the company in favor of the employee or another business directly or indirectly in competition with Client.

9. Indemnification.

The employee shall indemnify and hold harmless the company from any damages, claims, liabilities, loss and expenses, including reasonable attorney's fees, arising out of any act or omission of the employee in performing the Services or the breach of any provision of this contract by the employee.

10. Amendments

The company may update this contract to stay current with its business. The company is responsible to notify the employee of any changes.

This contract has been executed and delivered as of the date first written above.

The company



भारत गणराज्य		REPUBLIC OF INDIA	
जन्म / Type	प	प्राग्विक / Country Code	IND
उपनाम / Surname		T2673055	
SINGH			
दिया प्रताप राय / Given Name(s)			
ADITYA PRATAP			
राष्ट्रता / Nationality			
भारतीय / INDIAN			
जन्म स्थान / Place of Birth		लिंग / Sex	म
KHURHAN, BIHAR		मिति / Date of Birth	23/03/1996
जन्म स्थान को स्थान / Place of Issue			
CHANDIGARH			
जन्म मिति को मिति / Date of Issue		मिति को मिति / Date of Expiry	
21/12/2018		20/12/2028	